

2. 9:00 AM CASE NUMBER: C23-00131
CASE NAME: MADELINE SERAFIN VS. ROBERT SERAFIN
***HEARING ON MOTION IN RE: MOTION TO LIFT STAY ON DISCOVERY FILED 8/17/26 BY MADELINE SERAFIN**
FILED BY: SERAFIN, MADELINE
TENTATIVE RULING:

Plaintiff's motion to lift the stay on Discovery is granted. Parties may pursue discovery [1] exclusive of issues determined by the Family Court's Final Statement of Decision filed August 31, 2026, in Contra Costa County Case No. MSD21-02739, and [2] that is not related to the Burden note and related instruments, which are the subject of the case in federal court.

3. 9:00 AM CASE NUMBER: C23-01988
CASE NAME: MATTHEW PARRY VS. GELCO FLEET TRUST
***HEARING ON MOTION IN RE: TO FILE CERTAIN RECORDS WITH REDACTIONS AND CERTAIN RECORDS COMPLETELY UNDER SEAL**
FILED BY: MERCEDES-BENZ USA, LLC
TENTATIVE RULING:

Before the Court is the motion of Defendant Mercedes-Benz USA, LLC (MBUSA or Defendant) for an order search Exhibits 10 and 41-1, and redacting personal information from Exhibits 27-2 and 38-2 (all attached to the Declaration of Alan Van Gelder in Opposition to MBUSA's Motion for Summary Judgment (Van Gelder Decl.)).

There are four documents at issue.

Ex.	Request	Description
38-2 to Van Gelder Decl., Ex. A to Brunner Decl.	Redaction only	MBUSA internal questionnaire with customer responses regarding a specific reported incident, which is not the subject of this lawsuit. Identifies the reporting customer's name and acronym of the customer's business. Provided to MBUSA through its direct customer assistance service. Information is maintained by MBUSA as confidential in ordinary course of business. Produced unredacted to Plaintiff pursuant to "Pioneer letter" notifying customer of disclosure to plaintiff's attorneys but not notifying of "public disclosure." Brunner Decl, ¶ 7a. Previously produced to Plaintiff in another litigation matter, Wolf

		Decl., ¶ 5
27-2 to Van Gelder Decl., Ex. B to Brunner Decl.	Redaction only	MBUSA “internal and third-party email communications involving MBUSA employees, MBUSA’s business partners, and a non-party customer, who reported on two specific vehicle incidents that are not the subject of this lawsuit. ...include[s] non-party customer’s name, business name, email address, and phone number as well as direct contact information (email address and direct dial) for employees of MBUSA and MBUSA’s business partner. MBUSA produced the document subject to the protective order ...without redactions of customer-identifying information (e.g., customer name and business, phone number, email address) pursuant to Pioneer Letter. MBUSA seeks to redact direct contact information, (phone numbers and email addresses, not names) of the MBUSA employees and MBUSA business partners Brunner Decl., ¶ 7b. Previously produced to Plaintiff in another litigation matter, Wolf Decl., ¶ 5
Ex. 10/ Van Gelder Decl; / Ex. C to Brunner Decl.	Sealing	MBUSA internal technical presentation to NHTSA about its analysis of Vehicle Owner Questionnaires. Prepared for a confidential business meeting on April 22, 2021 with NHTSA representatives to discuss MBUSA’s investigation and analysis, activities and next step in context of recall investigation. NHTSA accepted the information pursuant to 5 U.S.C. § 522(b)(4) & (6). The presentation contains proprietary business data and technical information that is not publicly available that was prepared and used only in the context of a confidential investigation by MBUSA in response to NHTSA’s request. This was only a preliminary analysis and evaluation and was not part of the official recall materials that are publicly available. MBUSA marked it “Confidential Business Information” prior to designation in this case. Disclosure of the presentation would disclose aggregated incident data, including non-public reporting rates and case histories. Redaction would not adequately protect the confidentiality interests because the presentation as a whole contains confidential information. Brunner Decl., ¶ 8a.
Ex. 41-1 to	Sealing	MBUSA internal data compilation that reflects customer complaints

Van Gelder Decl.,		and incident tracking entries tied to specific vehicles and case histories that are collected by MBUSA employees as part of its customer assistance procedure. Prepared for and produced in response to NHTSA's Information Request associated with NHTSA's Preliminary Evaluation. NHTSA accepted the information pursuant to 5 U.S.C. § 522(b)(4) & (6). The information is not publicly available and is kept strictly confidential in MBUSA's business records. These are non-public customer reporting entries and do not include complete technical information or analyses. This preliminary information is only gathered by MBUSA's personnel from each customer to be able to conduct candid product analysis. Redaction would not adequately protect the confidentiality interests at issue because customer -provided information, incident narrative, vehicle-specific information and product evaluation categories are integrated throughout the document. MBUSA designated the document as "confidential" pursuant to the Protective Order.	
Ex. D to Bruner Decl.		Brunner Decl., ¶ 8b.	

It is appropriate to adjudicate the sealing and redaction issues here pursuant to Cal. Rules of Court 2.550 and 2.551. Section (a)(3) of Cal. Rule of Court 2.550 provides that its sealing provisions cover "discovery materials that are used at trial or submitted as a basis for adjudication of matters other than discovery motions or proceedings." The documents here were attached to a declaration submitted by Plaintiff in opposition to a motion for summary judgment or adjudication. (Brunner Decl., ¶¶ 7-8.)

California Rule of Court 2.550(d) provides:

The court may order that a record be filed under seal only if it expressly finds facts that establish:

- (1) There exists an overriding interest that overcomes the right of public access to the record;
- (2) The overriding interest supports sealing the record;
- (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed;
- (4) The proposed sealing is narrowly tailored; and
- (5) No less restrictive means exist to achieve the overriding interest.

See also, *NBC Subsidiary (KNBC-TV) Inc. v Superior Court* (1999) 20 Cal. 4th 1178, 1218-19.

Overriding Interest that Overcomes Right of Public Access

MBUSA alleges that there is an overriding confidentiality interest in confidential business information in Exhibits 10 and 41-1, (Brunner Decl. Exs. C and D) and asserts that nonparty individuals have an

overriding privacy interest in their personally identifiable information in Exhibits 27-2 and 38-2 (Brunner Decl. Exs. A and B). MBUSA asserts public disclosure would create a substantial probability of harm, including (1), confusion, or misinterpretation of unverified / preliminary incident reports or incomplete technical information outside its intended analytical context and (2) exposure of sensitive identifying information of their-party individuals, who have not consented to their information being accessible to the general public. (Notice of MBUSA's Motion and Motion to file Certain Records with Redactions and Certain Records Completely Under Seal Pursuant to California Rules of Court 2.550, 2.551 and ¶ 13 of the Court – Entered Protective Order; Memorandum of Points and Authorities (Motion) filed July 6, 2026, 3:24-4:3.)

Exhibits A & B to Brunner Decl.: Direct Business Contact Information

MBUSA contends that redactions should be made to Exs. A and B to the Brunner Decl., in order to protect third party information about individuals “that is subject to their constitutionally protected privacy rights.” Defendant cites the high court’s observation in *U.S. Dept. of Def. v. Fed. Labor Relations Auth.* (1994) 510 U.S. 487, 500 that, “Many people simply do not want to be disturbed **at home** by work-related matters. Employees can lessen the chance of such unwanted contacts by not revealing their addresses to their exclusive representative. [...] **We are reluctant to disparage the privacy of the home**, which is accorded special consideration in our Constitution, laws and traditions. [...] Because the privacy interest of bargaining unit employees in nondisclosure of their home addresses substantially outweighs the negligible FOIA-related public interest in disclosure, we conclude that disclosure would constitute a ‘clearly unwarranted invasion of personal privacy.’” (Emphasis added.) MBUSA argues this supports the court finding an overriding privacy interest in the direct business contact information of MBUSA employees and the business contact information of its business partner. (Motion, at 5:24-7:5.) MBUSA argues that such employees’ direct business contact information may be subject to “various types of misuse” from “unsolicited attempts via calls, test messages or emails, over phishing attempts and email bombs, to risks of spoofing and malware.” (Motion, 9:10-12.) MBUSA further argues there is a risk of prejudice to MBUSA’s business operation, “If this [direct employee contact information] were publicly available, there is a significant risk of their email boxes and phone lines being inundated with customer inquiries, which would cause extreme disruption of their usual business duties.” (Motion, 9:13-20.) MBUSA offers there is “no legitimate public interest in this direct employee contact information.” (Motion, 9:21-28.)

In Reply, MBUSA argues, “there is a substantial risk that anyone with a complaint about a Mercedes-Benz or an Amazon product, service or delivery could inundate those persons by flooding their email boxes or telephoning them. That potential is very real and would be disruptive of their business duties and of their personal right to be left alone. (Reply at 5.)

The court notes a logical gap between the cases supporting the privacy rights of individuals to their home contact information, and MBUSA’s request to redact direct business contact information for employees. “Courts have frequently recognized the individuals have a substantial interest in the privacy of their home.” (*Puerto v. Superior Court* (2008) 158 Cal. App. 4th 1242, at 1252, *citing Planned Parenthood Golden Gate v. Superior Court* (2000) 83 Cal. App. 4th 347, 359.) In addition, Plaintiff notes that at least one business contact, Mr. Kurt Warner, was deposed in this litigation and did not request that his information be kept confidential. (Brunner Decl., Ex 4, Ex. 498.)

The risk that people “could” start calling those numbers is speculative, and could be addressed by the employee stating in their answering voice greeting that this is not the number for public complaints and such calls will not be returned. The risk that email boxes would be inundated is also speculative and is a risk generic to anyone with an email address.

The court finds that MBUSA has failed to identify an overriding interest in the business contact information of MBUSA employees and third party business employees, and further that MBUSA has failed to demonstrate a substantial probability of harm to the MBUSA employees and third party business contacts if business contact information is not redacted.

Exhibits C & D to Brunner Decl.: MBUSA Submissions to the NHTSA

MBUSA argues that Exhibits C and D to the Brunner Decl. should be sealed pursuant to Section 2031.060(b)(5) of California Code of Civil Procedure (CCP) which provides that a court may issue a protective order in discovery matters to provide that “a trade secret or other confidential research, development, or commercial information not be disclosed, or be disclosed only to specified persons or only in a specified way.” CCP § 2031.060(b)(5). (Motion, 7-8)

MBUSA argues there is substantial probability of prejudice and harm if Exhibits C and D are not sealed. “The information contained in those two documents is not conclusive and taken out of context may create confusion or misinterpretation of unverified / preliminary incident reports or incomplete technical information without the benefit full engineering analysis and further information. (Citing Brunner Decl. ¶ 8.) If publicly accessible the documents may be used unfairly to characterize produce performance outside its intended analytical context. Absent sealing, the information would become publicly accessible and could be used to the detriment of MBUSA. This creates a substantial probability of competitive harm, reputational damage, and loss of confidentiality protections that were accepted by the NHTSA when submitted pursuant to 5 U.S.C. § 552(b)(4) & (6), 49 CFR Part 512.” Motion at 10.)

Plaintiff recognizes that the protection of trade secrets may warrant the sealing of records, but argues that “commercial harm or embarrassment of a party does not alone justify sealing the entire record,” citing *People v. Jackson* (2005) 128 Cal. App. 4th 1009, 1024. In *Jackson*, the trial court sealed a search warrant affidavit, the grand jury transcript, and the indictment in a case alleging child molestation by a public figure defendant. The appellate court found that the trial court had carefully balanced the defendant’s right to a fair trial and the public’s right to know, and displayed sensitivity and insight into the issues which included the privacy interests of minors and unindicted alleged co-conspirators, and the interests of law enforcement in an ongoing investigation. While the appellate court upheld the trial court’s sealing of portions of the search warrant affidavit and the defendant’s motions to dismiss the indictment, it ordered the rest of the indictment unsealed. *Jackson*, 128 Cal. App. 4th at 1022-1030.

The *Jackson* Court explained the standard it followed regarding sealing records as follows.

“While commercial harm or embarrassment of a party does not alone justify sealing the entire record of a case (*Wilson v. American Motors Corp.* (11th Cir. 1985) 759 F.2d 1568, 1570–1571), it is appropriate to

seal certain records when those particular records contain highly sensitive and potentially embarrassing personal information about individuals. (See *Doe v. Blue Cross & Blue Shield United of Wisconsin* (7th Cir. 1997) 112 F.3d 869, 872 [acknowledging that it may have been appropriate for the district court to seal psychiatric records that though pertinent to the suit would have been “highly embarrassing to the average person”].)

Jackson, 128 Cal. App. 4th at 1024.

While there are ample grounds for ordering that such documents be kept confidential and not used for any purpose outside this litigation, that is not the same as meeting the standard for wholesale sealing of such documents from the public. Plaintiff argues (without factual support) that the material are more than five years old, and that the problems involving Amazon Sprinter Fleet vans were solved with the implementation of after market retrofits and recalls which are publicly known. Even without supporting evidence for Plaintiff’s argument, MBUSA does not assert any of this constitutes a trade secret, and the court agrees that commercial harm or embarrassment is not sufficient to warrant sealing Exhibits C and D.

The court also finds that the federal confidentiality protections of MBUSA’s submission to the NHTSA is not mandatorily dispositive for purposes of the court’s sealing analysis here. MBUSA cites no authority to the contrary.

In Reply, MBUSA argues that if submission to the NHTSA are not shielded, this would have a “chilling” effect on MBUSA’s efforts to comply with requests from the NHTSA in the future. “[C]andor in investigations for use by the NHTSA would be compromised if preliminary technical analyses and field reporting information specifically prepared in response to a request from NHTSA and submitted under a federal confidentiality provision loses such protection because the information is later produced in a civil lawsuit such as this one. Contrary to Plaintiff’s assertions, this is not a question of mere embarrassment but a concrete, forward-looking harm to candor in response to investigations initiated by the NHTSA by all automotive companies, not just MBUSA.” (Reply at 6-7.) The court observes that MBUSA’s legal obligation of candor to the NHTSA is defined by federal regulation and stands independent of any ruling made by the court in this case. The court further finds MBUSA’s thinly veiled threat to compromise its duty to respond honestly to future requests from a federal automotive safety agency to be odious, and insufficient to establish an overriding interest that outweighs a right of public access.

MBUSA has not shown that there is a substantial probability of harm if Exhibits C and D are not sealed. In *Press Enterprise v. Superior Court* (*Press Enterprise II*), 478 U.S. 1 (1986), the high court found that a trial court in California erred in sealing the transcript of a 41 day preliminary hearing in a criminal matter, in part because there were no specific findings demonstrating first that there was substantial probability that the defendant’s right to a fair trial will be prejudiced by publicity that closure would prevent, and second that reasonable alternatives to closure could not adequately protect the defendant’s fair trial rights. The Supreme Court rejected the California standard which required a finding of only a “reasonable likelihood of substantial prejudice. *Press Enterprise II*, 478 U.S. at 13-14. The court finds the descriptions offered by MBUSA are generic and speculative and do

not rise to the level of substantial probability of harm.

Order:

MBUSA's motion is **denied**, expect that with regard to Exhibit D, the court finds that while the information in Exhibit D is not highly embarrassing to the consumers listed, the privacy interests of individuals in their specific home address and home phone numbers (but not their business names, business addresses or business contact email or phone numbers) are important enough to order that all information of an individual's home address and home phone numbers be redacted and not publicly disclosed.

4. 9:00 AM CASE NUMBER: C23-02833
CASE NAME: DEBRA DRISCOLL VS. DOES 1 THROUGH 100, INCLUSIVE
***HEARING ON MOTION IN RE: SET ASIDE DEFAULT**
FILED BY: HOOVER FLOORS
TENTATIVE RULING:

The Defendant's unopposed Motion to Set aside Default is granted. Defendant shall file its Answer or responsive pleading within 15 days of this September 18, 2026 order.

5. 9:00 AM CASE NUMBER: C24-02701
CASE NAME: ALYSS DORESE VS. AIDEN CIANI
***HEARING ON MOTION IN RE: ATTORNEY'S FEES PURSUANT TO CAL. CODE OF CIV. PROC.**
425.16(C)(1)
FILED BY: DORESE, ALYSS
TENTATIVE RULING:

The Court, having reviewed the moving and opposing papers on Plaintiff's Motion for Attorneys' Fees and Costs as having found good cause, hereby GRANTS IN PART Plaintiff's motion for attorney's fees against Defendant pursuant to Section 425.16(c)(1) of the California Code of Civil Procedure which is a subsection of the State of California's prohibition of strategic lawsuits against public participation ("Anti-SLAPP").

The Court hereby makes the following findings:

- 1) Plaintiff moved to strike per California's Anti-SLAPP procedure portions of Defendant's First Amended Cross-Complaint ("FACC");
- 2) The Court granted Plaintiff's Anti-SLAPP in part and struck portions of Defendant's FACC arising from Plaintiff's protected activity and thereby achieved a significant benefit from the motion and achieved the primary objective of said motion which was to strike Plaintiff's protected activity from Defendant's FACC;
- 3) Plaintiff therefore succeeded on their Anti-SLAPP motion;
- 4) Plaintiff's attorneys are therefore entitled to part of their reasonable fees and costs per